

MAY 18, 2026
Dept. 9
Probate Tentative Rulings

5.	26PR0027	MATTER OF BREHM REVOCABLE LIVING TRUST
Petition to Confirm Trust Property		

The Petitioner is the presently acting Co-trustee of The Marilee Brehm Revocable Living Trust ("Trust") dated December 5, 2018. Marilee Brehm died on September 2, 2025. Before her death, Ms. Brehm had executed the Trust as well as a Trust Transfer Deed (the "Deed") which was intended to place her real property into the Trust. The Schedule A to the Trust also lists the property as an asset of the Trust.

Settler Marilee Brehm signed the Deed in the presence of notary S. Marcella Goodwin. Upon attempted recording, the El Dorado Recorder-Clerk rejected the document citing a mismatch of names between the Deed's provisions and the signatory's name in the notary acknowledgement. This error was apparently never corrected as the property remains in the name of Marilee Brehm as an unmarried woman, contrary to the intentions made clear in the Trust and Deed.

Probate Code § 850 permits a trustee who has a claim to property, the title to or possession of which is held by another, to file a petition requesting that the court make an order pursuant to Probate Code § 856 authorizing and directing the person having title to or possession of real property to execute a conveyance or transfer to a person entitled thereto, or granting other appropriate relief. Probate Code § 851 requires the Petitioner to serve notice of the hearing and a copy of the Petition at least 30 days prior to the hearing to each person claiming an interest in or having title to or possession of the property. When the matter concerns a decedent estate, notice shall also be given to any heir or devisee whose interest may be affected by the Petition in accordance with Probate Code § 1200.

Probate Code § 857 provides that in the event that the court issues such an Order:

(a) The order is prima facie evidence of the correctness of the proceedings and of the authority of the personal representative or other fiduciary or other person to make the conveyance or transfer.

(b) After entry of an order that the personal representative, other fiduciary, or other person execute a conveyance or transfer, the person entitled thereunder has the right to the possession of the property, and the right to hold the property, according to the terms of the order as if the property had been conveyed or transferred in accordance with the terms of the order.

Pursuant to Probate Code §850 and *Estate of Heggstad* (1993) 16 Cal.App. 4th 943, 947-950, the Court finds sufficient evidence that decedent intended the above-mentioned assets be part of the Trust.

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TENTATIVE RULING #5:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.